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Counterfactual Timely Rehearing Petition

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed July 23, 2026

Blue Ember petitions for panel rehearing of the July 9 opinion and judgment. The petition is filed fourteen days after entry and is timely under Federal Rule of Appellate Procedure 40. It seeks reconsideration within the same isolated docket and does not request rehearing en banc.

The panel accepted every uncertainty favoring Blue Ember, yet held that no reasonable jury could select a deduction below \$1,500,000. That conclusion overlooks how the unresolved BE-214 qualification tasks, downstream disposition timing, and staged failure exposure interact with Granite Heron’s affirmative-defense burden. The verdict needed a rational basis, not an expert who announced its exact number.

Blue Ember asks the panel to withdraw the adverse sufficiency holding, reverse mitigation JMOL, and vacate the \$2,700,000 amended judgment. If renewed judgment falls, the Court may address Rule 50(c)(2) consequences. The present petition does not ask the panel to decide the conditional Rule 59 ruling while JMOL remains affirmed.

Point requiring rehearing

The opinion correctly separates preservation from merits. Blue Ember does not challenge the premise that Granite Heron twice identified Cobalt Finch, \$1,800,000 in gross avoidance, \$300,000 in alternative expense, and a requested \$1,500,000 net deduction. Nor does Blue Ember rely on the wording of the actual causation-only motions.

The error lies in treating the absence of a competing point estimate as a failure of evidence. Granite Heron bore both unreasonable conduct and the amount of avoidable loss. Its expert's coherent model did not compel Blue Ember to establish a different precise probability, completion date, or cost before jurors could discount that model.

Calder described elevated risk and unfinished program work. Solis explained why a sponsor could prefer the qualified Aurora Quay route. Brooks showed that Park's savings depended on a successful sequence through transfer, engineering, manufacturing, testing, review, and disposition. Each link affected the claimed amount.

Those facts permit more than a generalized fear of failure. They give a rational basis to find a genuine mitigation opportunity worth less than the modeled maximum. Rehearing is warranted because the opinion applied the burden as though uncertainty belonged to Blue Ember rather than to Granite Heron.

Program capability was not the disputed endpoint

Blue Ember agrees that Cobalt Finch possessed relevant biologics capability, frozen receiving, suitable scale, single-use systems, trained personnel, and an available Durham suite. It also agrees that no fatal incompatibility had been identified when the capacity hold expired. Those concessions explain why the jury found some mitigation.

They do not establish readiness for BE-214. The manufacturer had never run the program. Detailed equipment comparison, method ownership, sponsor audit, training, document adaptation, material review, and engineering confirmation remained incomplete. A November 22 readiness gate existed because the December 2 start was conditional on that work.

The opinion reasons that no concrete obstacle was shown. But Granite Heron bore the defense. Requiring Blue Ember to identify a disabling defect before the focused assessment occurred converts absence of information into proof of success. The jury could instead discount an alternative whose value depended on unresolved product-specific questions.

Staged diligence limited exposure but did not eliminate it. Blue Ember could incur cost and divert personnel before learning that Aurora Quay remained necessary. A factfinder could view declining the slot as imperfect while assigning the lost option a probability-adjusted value below Park's full-success scenario.

The calendar did not compel the modeled savings

Cobalt Finch projected manufacturing near December 2 and initial campaign completion near December 20. Final usable output required later testing, record review, handling of any deviation, and quality disposition. Aurora Quay began its qualified replacement campaign on March 3, 2025. The difference between start dates was substantial but not identical to compensable delay avoided.

Park attributed \$1,800,000 of the \$2,000,000 bounded delay category to the alternate course. Her analysis left \$200,000 unaffected, yet that choice remained an expert inference. No contemporaneous promise fixed the alternate disposition date, and no success probability converted the staged schedule into an expected value.

Brooks explained that those assumptions could vary separately. A jury could conclude that an earlier course offered benefit while finding much of Park's claimed acceleration too uncertain. It could also account for the chance that transfer stopped after spending began and the later campaign was still required.

The opinion calls the missing inputs unsupported inventions. That description inverts Rule 50 review. Evidence of open gates and downstream work supports a range; the party with the affirmative-defense burden must prove where within that range its reduction lies. Rehearing should restore that allocation.

The \$300,000 verdict was not arbitrary

The special verdict separated \$4,200,000 in gross damages from mitigation and instructed jurors to state a net deduction after reasonable alternative expense. The jury selected \$300,000. It thereby rejected both a zero-value view and Granite Heron's request for the complete \$1,500,000 net figure.

Jurors need not expose their deliberative formula. They could assign a lower likelihood to successful qualification, reduce the duration of delay avoided, recognize downstream uncertainty, and subtract the stated transfer expense. Each adjustment arose from evidence, even though no expert combined them into the precise verdict.

Courts routinely permit factfinders to select values within an evidentiary range when damages depend on probability and timing. Rule 50 asks whether a legally sufficient basis exists, not whether the reviewing court can reconstruct every multiplication. The intermediate answer here tracks the central dispute the experts and percipient witnesses presented.

The opinion's requirement for a supported alternative date, probability, or expense effectively demands expert sponsorship for the exact verdict. Neither Rule 50 nor North Carolina mitigation law imposes that rule. Rehearing is needed to prevent a burdened movant's single model from becoming conclusive whenever the opponent criticizes its inputs rather than publishing another endpoint.

Requested relief respects Rule 50(c)

If the panel grants rehearing and reverses JMOL, the \$2,700,000 amended judgment cannot remain supported by the \$1,500,000 judicial deduction. Rule 50(c)(2) then governs the consequence of the district court's conditional new-trial determination and permits appropriate appellate directions.

Blue Ember has preserved objections to both the conditional clear-weight reasoning and the limitation of a possible retrial to gross damages and mitigation. Granite Heron has defended those matters. This petition does not ask the panel to pre-decide them while the existing affirmance remains in force.

The July 9 opinion properly refrained from deciding the conditional ruling because JMOL remained effective. Rehearing on sufficiency would change that predicate, after which the panel could order focused supplemental submissions or resolve the preserved Rule 50(c)(2) issues within its authority.

The narrow request avoids an advisory ruling. Withdraw the conclusion that \$1,500,000 was compelled; reverse renewed judgment; vacate the amended judgment; and then determine the conditional order's consequence. Blue Ember does not seek any change to contract liability or shipment causation and does not ask for relief beyond the isolated branch.

Timeliness, service, and branch limits

The opinion and judgment were entered July 9, 2026. This petition is filed July 23, exactly fourteen days later. No extension is requested. Filing suspends ordinary mandate issuance within this rehearing route until the petition is resolved and a new Rule 41 date can be calculated.

Maya Holt signs for Blue Ember with Jonas Bell's authorization. Counsel certifies electronic service on Eli Mercer and Tara Webb on July 23. The petition complies with the fictional docket's form requirements and relies only on the existing briefs, certified record, and isolated preservation order.

This source does not assert that rehearing was sought in an actual appeal. It bears both warnings and the never-occurred docket. The actual Rule 50(a) motions remain causation-only; nothing in this petition changes their text, creates historical notice, or affects the separate actual appellate disposition.

The petition also belongs to one mutually exclusive mandate route. The ordinary July 30 release cannot occur if this timely filing is pending. If rehearing is later denied, the mandate period will run from entry of the denial under Rule 41. No earlier release event can be carried into that sequence.

Conclusion

The fixed evidence supports a genuine Cobalt Finch alternative, but it also supports material uncertainty about BE-214 readiness, successful completion, downstream disposition, and net economic value. Because Granite Heron bore the affirmative defense, those supported uncertainties permitted the jury to select a deduction below Park's modeled \$1,500,000.

Blue Ember respectfully asks the panel to grant rehearing, withdraw the contrary portion of its July 9 opinion, reverse mitigation JMOL, and vacate the \$2,700,000 amended judgment. Any treatment of the conditional Rule 59 ruling should follow only after renewed judgment ceases to control.

The request does not challenge jurisdiction, liability, causation, or the \$4,200,000 gross-damages total. It focuses on the Rule 50 sufficiency standard and the correct placement of uncertainty under North Carolina mitigation law. No rehearing en banc is sought.

Every requested action is confined to this synthetic branch. No ruling can alter the actual district motions or produce an event on another docket. Blue Ember asks only that the same panel reconsider its own counterfactual merits decision before a branch mandate issues.